

25CV06122 Patricia Guerrero vs Beverly Place Holmes et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-06-26

Motion: CMC; Motion for Leave

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Tentative Ruling: Patricia Guerrero vs Beverly Place Holmes et al

Case Number

25CV06122

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 06/26/2026 - 10:00

Nature of Proceedings

CMC; Motion for Leave

Tentative Ruling

Plaintiff Patricia Guerrero filed her original complaint against defendants Beverly Place Holmes and Preston Hower Holmes on September 29, 2025, asserting causes of action arising out of an automobile accident. On November 24, 2025, defendants filed their answer to the complaint, generally denying the allegations thereof and asserting 10 affirmative defenses. On January 27, 2026, plaintiff filed this motion for leave to file a first amended complaint. The motion is opposed by defendants. Defendants argue that the added proposed causes of action for improper and fraudulent transfer of property have no merit and are insufficiently pleaded. No trial date has yet been set in this action.

“ ‘The court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading....’ [Citation.] However, the court’s discretion will usually be exercised liberally to permit amendment of the pleadings. [Citations.] The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)

Defendants have not shown prejudice by the proposed amendment. The preferred approach to addressing insufficient pleadings is to challenge the amended pleading by appropriate motion rather than to address the issue in the motion to amend. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.) The motion for leave to amend will be granted. Plaintiff shall file and serve the first amended complaint in substantially the same form as attached to the motion on or before July 10, 2026.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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